

2. The Court shall enter the proposed form(s) of order lodged with the moving papers.

^[1] Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2026) (“CJER Civ. Pro.—Before Trial”), § 5.43 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor’s compromise and concluding that a judge “may decide a petition to approve or disapprove a minor’s compromise on an ex parte basis, in chambers”). In any event, no party has sought to appear to oppose the Minor’s Compromise.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-00400
CASE NAME: SHERRI BROWN VS. CITY OF PITTSBURG
COMPEL FURTHER RESPONSES TO INTEROGS, SET 1
FILED BY: BROWN, SHERRI
TENTATIVE RULING:

Parties to Appear.

15. 9:01 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
COMPEL RESPONSES TO FORM INTEROGS, SET 1
FILED BY: GUPTA, PRAVEEN
TENTATIVE RULING:

On January 15, 2026, plaintiff Praveen Gupta (“Plaintiff”) filed a motion to compel (the “Motion to Compel”) responses to discovery served upon defendants The Vintner Condominium Homeowners’ Association (the “HOA”) and New Pipes Inc. (“New Pipes”) (collectively, “Defendants”). The motion also seeks an order deeming the truth of the matters specified in requests for admissions served. The Motion to Compel was initially set for hearing on April 17, 2026. The motion was continued by the Court to August 31, 2026.

Background

Plaintiff served Defendants with certain discovery requests on October 22, 2025, including form interrogatories, special interrogatories, requests for admissions, and requests for production of documents. See Declaration of Praveen Gupta filed January 15, 2026 as part of the Motion to Compel (“Gupta Decl.”) ¶2. Plaintiff contends responses were due by December 5, 2025, after an extension was given for responses. *Id.*

Plaintiff contends Defendants served objection only responses. *Id.* at ¶15 and **Exhibit C**.

Responses were served December 5, 2026 by the HOA. *Id.* at **Exhibit C**.

Analysis

While it does not appear that any opposition has been filed to the Motion to Compel, the motion is procedurally defective, at least as to the HOA which responded to the discovery requests at issue. Plaintiff has not filed any Separate Statement in support of the Motion to Compel.

Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to compel further responses to interrogatories or a demand for inspection of documents. Rule 3.1345(a)(1)-(3); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Rutter Civ. Pro.”) § 8:602.5.

There are very specific requirements for the formatting and content of a Separate Statement. See CRC 3.1345(c) (“A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.”). Among other things, a proper Separate Statement must set forth the full text of both the request and response. *Id.* at (c)(1)-(2).

No Separate Statement in compliance with the requirements of CRC 3.1345 was ever filed by Plaintiff. For this reason alone, the motion is procedurally defective.

Even if not procedurally defective, the Court would deny the Motion to Compel because Plaintiff failed to meet and confer in good faith—either in person, by telephone, or by videoconference—to resolve the substantive discovery issues before filing this motion. See Code Civ. Proc. § 2016.040 (“A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”).

As to New Pipes, it is not clear to the Court if New Pipes responded to the discovery at issue. No opposition papers have been filed by New Pipes. New Pipes filed a joinder to a motion for a protective order relating to the discovery. Gupta Decl., **Exhibit D**. However, that motion was eventually withdrawn. Some meet and confer correspondence appears in the supporting declaration that suggests that responses were received. See Motion to Compel, p. 334, Email dated November 28, 2025 from Plaintiff (“I write to meet and confer regarding New Pipes, Inc.’s discovery responses which assert a global objection to *all* requests...”).

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is **DENIED** as to the discovery requests propounded upon the HOA. Any requests for sanctions are **DENIED**.
2. As to the discovery requests propounded upon New Pipes, the parties are **ORDERED TO APPEAR** to address the matter.

16. 9:01 AM CASE NUMBER: C25-02477
CASE NAME: RICHARD KABASINSKAS VS. KAISER FOUNDATION HOSPITALS
COMPEL KAISER FOUNDATION HOSPITALS TO FURTHER RESPOND TO PLAINTIFF'S FORM
INTERROGATORY - EMPLOYMENT LAW (SET ONE) NO. 215.1
FILED BY: KAISER FOUNDATION HOSPITALS
TENTATIVE RULING:

Plaintiff Richard Kabasinkas ("Plaintiff") filed a motion to compel a further response to a form interrogatory on March 9, 2026 (the "Motion to Compel Further Response"). The Motion to Compel Further Response was set for hearing on August 31, 2026. The motion is opposed.

Background

The discovery request at issue (the "Discovery Request at Issue") is the following:

1. Form Interrogatories—Employment Law, Set One (the "**FROGs—Employment**") to defendant Kaiser Foundation Hospitals ("Kaiser") **No. 215.1**.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402. On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Having considered the moving papers, including the Separate Statement, the opposition papers, and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Request at Issue.

Discovery Request at Issue

FROGs—Employment, No. 215.1.

This form interrogatory seeks the following information:

215.1 Have YOU OR ANYONE ACTING ON YOUR BEHALF interviewed any individual concerning the ADVERSE EMPLOYMENT ACTION? If so, for each individual state:

- (a) the name, **ADDRESS**, and telephone number of the individual interviewed;
- (b) the date of the interview; and
- (c) the name, **ADDRESS**, and telephone number of the **PERSON** who conducted the interview.